

DAS DEPARTMENT OF ADMINISTRATIVE SERVICES STATEWIDE PROCEDURE	NUMBER 107-004-015_PR	SUPERSEDES Policy # 107-001-015 (2010)
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DIVISION Enterprise Information Services	REFERENCE • ORS 291.015, ORS 291.016, ORS 291.018, ORS 291.026, ORS 291.034, and ORS 276A.206 • Statewide Policy 107-004-015	
POLICY OWNER Shared Services		
SUBJECT Internal Controls for Managing Mobile Communications Devices	APPROVED SIGNATURE  Terrence Woods, State Chief Information Officer	

PURPOSE

This procedure outlines steps for maintaining agency internal controls for managing the use of Mobile Communications Devices (MCDs).

APPLICABILITY

All Executive Branch agencies under direct authority of the Governor. Other agencies may follow this policy at their option.

FORMS/EXHIBITS/INSTRUCTIONS

Attachment A: Mobile Communication Device Acceptable Use Agreement

DEFINITIONS

Access Account: The account of each access number for voice/data transmission provided by a mobile communications provider.

Authorized User: The person or entity authorized to use the access number on the Access Account.

Mobile Communication Device (MCD): A wireless or cellular, two-way communication device designed to receive and transmit voice or text communication including mobile Global Positioning System (GPS) device or Application Data. This procedure applies to any Mobile Communication Device that requires the purchase of mobile communication services by the state.

Mobile Device Management: Software that allows IT administrators to control, secure, and enforce policies on smartphones, tablets, and other endpoints.

Plan Charge: The charge assessed by a data or voice provider for each Access Account.

Text: A Short Messaging Service (SMS), Multimedia Messaging Services (MMS) iMessage, or any other written form of message using an MCD such as a cell phone, smart phone, tablet, or GPS device.

Short Messaging Services (SMS): Commonly referred to as texting or text messaging. This is a technology for sending short messages between MCDs.

PROCEDURE

<u>RESPONSIBILITY</u>	<u>STEP</u>	<u>ACTION</u>
Agency Director	1.	Each agency director is responsible for: (1) Ensuring that their agency has sufficient safeguards in place to ensure that expenditures for mobile communications are restricted to those necessary for the conduct of official state business. This includes ensuring that there are sufficient internal controls. (2) Ensuring appropriate usage of MCDs (i.e. restrictions on personal calls) and compliance with applicable rules and policies. (3) Ensuring that only charges incurred by Authorized Users conducting official state business are paid by the state. (4) Ensuring that Authorized Users are on the most cost-effective plan for their type of use. (5) Designating a Mobile Communication Plan Coordinator in writing with authority to open, manage and cancel Access Accounts.
Division Administrator	2.	Each division administrator is responsible for enforcing Policy 107-001-015 and: (1) Providing a good example of MCD use and guarding against excessive or inappropriate use of such devices by employees. (2) Maintaining accurate record of violations of Policy 107-001-015. (3) Implementing a mobile device maintenance program that includes processes for software updates (Mobile Device Management), regular inspection, and maintenance. (4) For vehicle-mounted MCDs, pre-trip inspections are required, with immediate withdrawal from service of any device with mechanical defects.
Mobile Communication Plan Coordinator	3.	Each Mobile Communication Plan Coordinator is responsible for: (1) Opening Access Accounts by authorizing vendors to issue Access Account numbers for Authorized Users. (2) Managing Access Accounts by: a) Maintaining a list of all MCD Access Accounts and corresponding Authorized User (employee names) with corresponding personnel identification numbers. List will also identify any special purpose accounts for audit purposes. b) Serving as a contact and liaison between agency, divisions and the vendor.

RESPONSIBILITY**STEP****ACTION**

- c) Ensuring that specific staff is assigned to monitor plan charges including use by Authorized Users, appropriateness of plans, and personal use.
- (3) Ensure that MCDs are securely stored when not assigned to Authorized Users.
- (4) Cancelling Access Accounts when Authorized Users terminate state service and when MCDs are lost or stolen, or access is disconnected for cause. Reporting information security incident/event when the MCD is lost or stolen.
- (5) Securing removal or destruction of Limited, Restricted, and Critical information prior to disposal or surplus of MCDs.
- (6) Annually review plans for best fit to agency needs and recommend changes to division administrator for potential cost savings.
- (7) Quarterly, review and validate plan charges and authorized users to ensure that expenditures for plan charges meet the requirements under Policy 107-004-015. Any discrepancy should be noted to the supervisor of the Authorized User.

Supervisor of the
Authorized User

4. The supervisor of the Authorized User is responsible for:

- (1) Determining if a valid business reason exists to provide an MCD and authorize Plan Charges for an Authorized User. Examples of valid business reasons include:
 - a) Official duties require the worker to be "on-call" away from workstations.
 - b) Official duties require travel during their normal assigned work time.
 - c) Official duties expose staff to danger.
 - d) Official duties require an emergency or time-critical response.
 - e) Cost of device is justified by the gain in operational efficiency.

Issuance of an MCD and the authorization of Plan Charges expose the agency and state to liability for all charges resulting from the use of the MCD. Agencies need to be able to identify a business need when determining if the issuance of an MCD is necessary.

- (2) Ensuring that the Authorized User:
 - a) Has received training on acceptable use, understands their responsibilities and signs an MCD Acceptable Use Agreement.
 - b) Knows the importance of protecting Limited, Restricted, and Critical information assets contained on a MCD that can be released during voice/data transmissions or with the loss or theft of an MCD.
 - c) Has access to Policy 107-004-015.
- (3) Coordinates with the agency's human resources office on mobile communications issues. Possible sanctions for misuse could include:
 - a) Forfeiture of Access Account
 - b) Required reimbursement of personal or other inappropriate use
 - c) Disciplinary actions including dismissal
 - d) Criminal charges

<u>RESPONSIBILITY</u>	<u>STEP</u>	<u>ACTION</u>
Authorized User	5.	The Authorized User is responsible for: (1) Taking reasonable steps to ensure the physical security of MCDs. Immediately reporting missing, lost or stolen MCDs to their supervisor and Mobile Communication Plan Coordinator. (2) Using the MCD in a manner consistent with the MCD Acceptable Use Agreement. (3) Taking reasonable steps to prevent the release of Limited, Restricted, or Critical information either during the voice/data transmission or from the loss/theft of the MCD. (4) Understanding that sanctions, including dismissal, may result from the unauthorized use of the MCD.

Mobile Communication Device Acceptable Use Agreement

I, _____ acknowledge I am being granted use of state information assets to carry out my work and agree that my use of such assets will be conducted in a manner that ensures compliance with state policies 107-004-015, 107-001-010, 107-004-110, and Oregon Accounting Manual Policy 40.10.00 PO.

I agree that non-emergency personal use of a state Mobile Communications Device, may be identified on a monthly basis and may require reimbursement to the agency through Payroll Deduction. I further understand that any personal use is also subject to taxation of the user.

I understand my usage will be monitored, without further warning, and that inappropriate use may be cause for disciplinary action, including but not limited to reprimand, suspension, and termination of employment or civil or criminal prosecution under federal and state law.

I understand that I must use a hands-free accessory when driving a motor vehicle while using a Mobile Communication Device, except where exclusions apply. Any traffic violations or payment of fines imposed for violation of any applicable laws are my personal responsibility.

I understand that the use of state information assets may be revoked at any time without further warning.

By signing below, I acknowledge that I have read and understood this document. I further understand it is my responsibility to seek advice regarding any questions I might have regarding this document or state policy prior to my signing.

Employee Signature

Date

Print Name
